

25STCV19801 25STCV19801

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Case Number: 25STCV19801 Hearing Date: July 29, 2026 Dept: 513

Superior

Court of California

County of

Los Angeles – Central District

Department 513

Richard ODonnell

, et al.;

Plaintiffs,

vs.

Ford Motor Company

, et al.,

Defendants.

Case No.:

25STCV19801

Hearing Date:

July 29, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Demurrer
to Complaint

MOVING PARTY: Defendants Ford Motor Company and Envision
Ford of Oxnard

RESPONDING

PARTY: Plaintiffs Richard Odonnell and Gary
Cooksey

Demurrer to Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Defendants Ford Motor
Company and Envision Ford of Oxnard ("Defendants") demur to the Complaint filed
by plaintiffs Richard Odonnell and Gary Cooksey ("Plaintiffs") in its entirety.

The court sustains
Defendants' demurrer to the first cause of action for violation of Civil Code section
1793.2, subdivision (d) because Defendants have shown that it does not state facts
sufficient to constitute a cause of action since Plaintiffs have not alleged facts
establishing that the vehicle that is the subject of this action is a new motor
vehicle within the meaning of the Song-Beverly Consumer Warranty Act. (Code Civ. Proc., § 430.10, subd. (e).)

Plaintiffs allege
that they have been damaged by Defendant's failure to comply with its obligations
under Civil Code section 1793.2 on the ground that Defendant failed to promptly
replace the subject vehicle or to make restitution (Compl. ¶ 30). Under section 1793.2, subdivision (d)(2), the

Song-Beverly Consumer Warranty Act provides that a manufacturer shall promptly replace a new motor vehicle, or make restitution to the buyer, if the manufacturer is unable to service or repair a new motor vehicle to conform to the applicable express warranties. (Civ. Code, § 1793.2, subd. (d)(2).) As noted by Defendants, the California Supreme Court recently held that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2)’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196.) Here, Plaintiffs have alleged that they “entered into a warranty contract with Defendant FORD regarding a 2020 Ford Mustang . . . , which was manufactured and/or distributed by Defendant FORD” (Compl. ¶ 7).

Thus, because Plaintiffs have alleged facts establishing that the car was used (i.e., by alleging that it was a model-2020 vehicle purchased in 2023 (Compl. ¶ 7), Plaintiffs must allege that Ford’s new car warranty accompanied the sale.¹ (Rodriguez, supra, 17 Cal.5th at pp. 196, 199-200 [“the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale”].) While Plaintiffs have alleged that they “entered into a warranty contract with Defendant FORD” regarding the subject vehicle (Comp. ¶ 7), which included bumper-to-bumper, powertrain, and emission warranties (Compl. ¶ 8), Plaintiffs did not allege the warranty contract to be Ford’s new car warranty that was issued with the sale. (Ibid.)

The court sustains Defendants’ demurrer to the second cause of action for violation of subdivision (b) of Civil Code section 1793.2 because it does not state facts sufficient to constitute a cause of action since Plaintiffs have not alleged, for the reasons set forth above, facts establishing that the subject vehicle is a new motor vehicle within the meaning of the Song-Beverly Consumer Warranty Act. (Code Civ. Proc., § 430.10, subd. (e); Civ. Code, §§ 1793.2, subd. (b), 1791, subd. (a) [defining consumer good to mean any new product that is used, bought, or leased primarily for personal, family, or household purposes].)

The court sustains Defendants’ demurrer to the third cause of action for violation of subdivision (a)(3) of Civil Code section 1793.2 because it does not state facts sufficient to constitute a cause of action since Plaintiffs have not alleged, for the reasons set forth above, facts establishing that the subject vehicle is a new motor vehicle within the meaning

of the Song-Beverly Consumer Warranty Act.

(Code Civ. Proc., § 430.10, subd. (e); Civ. Code, §§ 1793.2, subd. (a)(3), 1791, subd. (a).)

The court sustains

Defendants' demurrer to the fourth cause of action for breach of the implied warranty of merchantability because it does not state facts sufficient to constitute a cause of action since Plaintiffs have not alleged, for the reasons set forth above, facts establishing that the subject vehicle is either a new motor vehicle within the meaning of the Song-Beverly Consumer Warranty Act, or that Ford issued a new warranty at the point of purchase. (Code Civ. Proc., § 430.10, subd. (e); Civ. Code, §§ 1791.1, 1794, 1795.5.)

The court overrules

Envision Ford's demurrer to the fifth cause of action for negligent repair because it states facts sufficient to constitute a cause of action since (1) the court finds that it is not barred by the economic loss rule because it is based on Envision Ford's breach of its duty to use ordinary care and skill in the storage, preparation, and repair of the subject vehicle in accordance with industry standards (Compl., ¶ 49), and therefore does not arise from any underlying contract between Plaintiffs and Envision Ford, and (2) Plaintiffs have sufficiently alleged that Envision Ford's breach of its duties proximately caused Plaintiffs' damages (Compl., ¶ 50). (Code Civ. Proc., § 430.10, subd. (e); Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 923; Berkley v. Dowds (2007) 152 Cal.App.4th 518, 527 ["Ordinarily, negligence may be alleged in general terms"].)

The court sustains

Defendant's demurrer to the sixth cause of action for fraudulent inducement – concealment because it does not state facts sufficient to constitute a cause of action since Plaintiffs have not alleged that Defendants had a duty to disclose the facts regarding the subject defects in the vehicle, including because Plaintiffs have not alleged facts establishing that they purchased the vehicle directly from Defendants or its agent and that, during the course of those direct dealings, Defendants concealed facts regarding the defects from Plaintiffs. (Code Civ. Proc., § 430.10, subd. (e); Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40-41 [circumstances imposing a duty to disclose "presuppose a preexisting relationship between the parties" which "must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large"]; Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that

there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers].)

The burden is on the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The court finds that Plaintiffs have not articulated the facts that they could allege to render their causes of action against Ford sufficient and therefore sustains the demurrer without leave to amend.

ORDER

The court
SUSTAINS defendants Ford Motor Company and Envision Ford of Oxnard's demurrer to plaintiffs Richard Odonnell and Gary Cooksey's first through fourth and sixth causes of action without leave to amend.

The court OVERRULES
defendants Ford Motor Company and Envision Ford of Oxnard's demurrer to plaintiffs Richard Odonnell and Gary Cooksey's fifth cause of action.

The court orders defendants
Ford Motor Company and Envision Ford of Oxnard to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 29, 2026

Robert B. Broadbelt III

Judge of the Superior Court